

M/S Laxmi Oil Expeller v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 October 2009 · WRIT - C No. - 62121 of 2005 · **Vires challenge infructuous; fresh assessment directed under first amendment.**

HEADNOTE

Challenge to clause 8.2(iv) of the U.P. Electricity Supply Code, 2005 became infructuous after the Code was amended and the amended provisions were not attacked. The February and May 2005 assessment orders could not stand: because the period of assessment related to the first amendment, the licensee was directed to make a fresh assessment under the Code as so amended.

FACTUAL SUMMARY

M/S Laxmi Oil Expeller and another petitioned the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Ltd., challenging an assessment order dated 10 February 2005 and a consequential order dated 3 May 2005. They also attacked the vires of clause 8.2(iv) of the Uttar Pradesh Electricity Supply Code, 2005, framed under the Electricity Act, 2003. At the hearing, counsel stated that the Code had been amended and that the amended provisions were not under challenge, leaving only the assessment orders in issue.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.2

fresh assessment under first amendment

HOLDING

Where the period of assessment relates to the first amendment of the Electricity Supply Code, 2005, the licensee must make a fresh assessment in accordance with the Code as so amended; the existing assessment and consequential orders cannot stand. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VIRES OF CLAUSE 8.2(IV) OF THE ELECTRICITY SUPPLY CODE, 2005

Challenge rendered infructuous after counsel stated the Code had been amended and the amended provisions were not under challenge. ¶ 3